

Defendant Monte J. Smith D.D.S.' demurrer to Plaintiff's second amended complaint ("SAC") is sustained with leave to amend. Plaintiff shall serve and file an amended complaint within ten (10) days of notice of this Court's order.

Legal Standard on Demurrer

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. A court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff's claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.*, 148 Cal.App.4th at 113-114.

"If a complaint does not state a cause of action, but there is a reasonable possibility that the defect can be cured by amendment, leave to amend must be granted." *Milligan v. Golden Gate Bridge Highway & Transportation Dist.* (2004) 120 Cal.App.4th 1, 6.

Second Cause of Action: Breach of Contract

Defendant argues Plaintiff's second cause of action fails to state facts sufficient to constitute a cause of action because it fails to cure the deficiencies noted in the ruling sustaining Defendant's prior demurrer. The Court disagrees.

The elements of a breach of contract cause of action are the existence of the contract, performance by the plaintiff or excuse for nonperformance, breach by the defendant and resulting damages. *First Commercial Mortgage Co. v. Reece* (2001) 89 Cal.App.4th 731, 745. However, the scope of a patient's recovery for breach of contract against a doctor, or as here, a dentist, is more limited.

"[A] doctor may be held liable on a theory of breach of contract where he has clearly and unequivocally warranted that a course of treatment recommended by him will, inevitably, produce a certain result." *Pulvers v. Kaiser Foundation Health Plan, Inc.* (1979) 99 Cal.App.3d 560, 564-565; *accord McKinney v. Nash* (1981) 120 Cal.App.3d 428, 442 ("To recover for breach of warranty or contract in a medical malpractice case, there must be proof of an express contract by which the physician clearly promises a particular result and the patient consents to treatment in reliance on that promise"); *Depenbrok v. Kaiser Foundation Health Plan, Inc.* (1978) 79 Cal.App.3d 167, 171 (where "a surgeon has clearly promised a particular result (as

distinguished from a mere generalized statement that the result will be good), and ... the patient consented to an operation or other procedure in reliance on that promise, there can be recovery on the theory of ... breach of contract,” fn. omitted). Additionally, to sufficiently allege breach of contract, the complaint must indicate on its face whether the contract is written, oral, or implied by conduct. Code Civ. Proc. § 430.10(g).

Uniformly, courts have held that “an action against a doctor arising out of his negligent treatment of a patient is an action sounding in tort and not one based upon a contract.” *Bellah v. Greenson* (1978) 81 Cal.App.3d 614, 625; *accord Stafford v. Shultz* (1954) 42 Cal.2d 767, 775 (“an action by a patient against a physician for injuries sustained by the former, by reason of the negligent or unskilled treatment of the latter, is an action sounding in tort and not upon a contract”) (citations omitted); *Huysman v. Kirsch* (1936) 6 Cal.2d 302, 306 (same).

At bar, the SAC states, “Prior to commencing cosmetic dental treatment, Plaintiff and Defendants entered into an oral and/or implied-in-fact agreement for cosmetic dental treatment....” SAC, 7:17-18. The FAC alleges “Defendants provided Plaintiff with digital Smile Vision imagery generated using photographs of Plaintiff depicting the *anticipated* cosmetic result.” SAC, 7:22-23 (emphasis added). “Defendants represented that the completed treatment would provide an aesthetic result consistent with the Smile Vision imagery.” SAC, 8:4-5. The SAC also alleges that Plaintiff relied on the representations. SAC, 8:7-10. These allegations are sufficient to state a contract action for a purported promised result. The demurrer as to this claim is overruled.

Third Cause of Action – Fraud and Misrepresentation

Defendant contends Plaintiff failed to allege all the required elements of fraud. The Court agrees.

“ ‘One who fraudulently makes a misrepresentation of fact ... for the purpose of inducing another to act or to refrain from action in reliance upon it, is subject to liability to the other in deceit for pecuniary loss caused to him by his justifiable reliance upon the misrepresentation.’ ” *Lovejoy v. AT&T Corp.* (2001) 92 Cal.App.4th 85, 92-93. “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, *i.e.*, to induce reliance; (d) justifiable reliance; and (e) resulting damage.” *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638. “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. ... [¶] This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’ ” *Id.* at 645 (original italics, citations and quotation marks omitted). In addition, “[e]very element of a fraud cause of action must be specifically pleaded. This pleading requirement of specificity applies not only to the alleged misrepresentation, but also to the elements of causation and damage.” *Moncada v. West Coast Quartz Corp.* (2013) 221 Cal. App. 4th 768, 776.

At bar, the SAC alleges “Defendants represented to Plaintiff that the completed treatment would achieve an aesthetic result consistent with the Smile Vision imagery.... At the time these representations were made, Defendants knew or should have known...” different aesthetic results could occur. SAC, 9:13-18. It further alleges Plaintiff identified concerns and relied on

Defendants to address her concerns in completing the restorations, and that Plaintiff reasonably relied on Defendants representations when proceeding with the treatment. 9:20-10:2.

These allegations are insufficient. Plaintiff has failed to plead facts which show how, when, where, to whom, and by what means the representations were tendered. She also fails to allege an intent to defraud. The demurrer as to the third cause of action is sustained. The Court finds there is possibility the defect can be corrected by amendment, so leave to amend is granted.

Fourth Cause of Action – Concealment

Defendant argues the fourth cause of action for fraudulent concealment again fails to identify who engaged in what alleged concealment, when the alleged duty to disclose arose, when the alleged concealment occurred, and sufficient facts showing defendants intentionally concealed information with the intent to defraud plaintiff. The Court agrees.

The elements for fraudulent concealment are: (1) the defendant must have concealed or suppressed a material fact; (2) the defendant must have been under a duty to disclose the fact to the plaintiff; (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff must have been unaware of other fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. *Lovejoy*, 119 Cal.App.4th at 157-158.

At bar, the SAC alleges, “Defendants presented Plaintiff with digital Smile Vision imagery generated using photographs of Plaintiff depicting the anticipated cosmetic outcome of the proposed treatment.... The Smile Vision imagery was material to Plaintiff’s decision to proceed with treatment.... Defendants did not inform Plaintiff that the Smile Vision imagery would not be retained, would become unavailable, or should be downloaded or preserved for future reference.... Plaintiff notified Defendants’ office that the link was not functioning and requested access. Plaintiff was subsequently informed that the imagery had not been retained and was no longer available.” SAC, 10:21-11:15.

Here, again, Plaintiff has not sufficiently alleged all elements of a cause of action for fraud by concealment. As such, the demurrer as to the fourth cause of action is sustained. The Court finds there is possibility the defect can be corrected by amendment; accordingly, leave to amend is granted.

10. CU21-086089 George L. Horner, et al. vs. Deborah Carver

The Court is satisfied, based on its review of the entire record, that the premises must be vacated and all items of personal property removed in order to facilitate the most effective marketing and sale of the property. Pursuant to its statutory and equitable authority, the Court orders Defendant and any other residents on the premises to vacate the premises and to remove all of their personal belongings from the premises within thirty days, that is, by no later than October 18, 2026, noon. Judgment was entered in February 2024 and Defendant has had in excess of two years to prepare a departure from the premises. The premises *shall* be vacated by the deadline noted *without fail*.